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# California Moves to Make Outdoor Dining Permanent, Streamline Restaurant Permitting

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California restaurants will soon have an easier time opening and operating under two new state laws that make outdoor dining permanent and streamline local permit approvals for restaurant improvements.

Gov. Gavin Newsom signed Assembly Bills 592 and 671 this month, both aimed at supporting restaurants adapting to post-pandemic realities and rising operational costs.

AB 592 makes permanent the outdoor dining programs that flourished during the COVID-19 pandemic, allowing restaurants to use sidewalks, parking lots and other public spaces for service. The law requires that food still be prepared in enclosed, health-approved kitchens and that operators submit rodent mitigation plans before opening outdoor areas.

AB 671, authored by Assemblymember Jesse Gabriel (D–Encino), creates a faster approval process for restaurant construction and renovation projects by allowing licensed architects or engineers—known as qualified professional certifiers—to verify that plans meet all state building, health, and safety codes.

Under the law, local building departments must approve or deny restaurant permit applications within 20 business days, or the plans will automatically be deemed approved. If plans are denied, applicants can correct and resubmit them, with subsequent reviews limited to the deficiencies identified in the first denial and subject to a 10-day response window.

Cities and counties may also set additional requirements or penalties for negligent certifiers, while maintaining audit authority over the process. The law further shields public employees from liability in discretionary or ministerial acts related to the new permitting system.

Both laws take effect Jan. 1, 2026, and apply statewide, including in charter cities.

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